

**Important Information for Tentative Rulings and Hearings:**

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to [Department403@sftc.org](mailto:Department403@sftc.org).
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to [Department404@sftc.org](mailto:Department404@sftc.org).
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to [Department414@sftc.org](mailto:Department414@sftc.org).
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT  
UNIFIED FAMILY COURT  
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to [www.zoom.com/join](https://www.zoom.com/join) and follow the instructions below:
  - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
  - Click "Launch Meeting" then "Open zoom.us".
  - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
  - Enable your camera and click "Join".
  - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
  - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
  - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

**Department 403**  
**Meeting ID: 161 463 0304**  
**Passcode: 114482**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

**Department 404**  
**Meeting ID: 161 305 3325**  
**Passcode: 282709**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVMkQkowckJSNnJwSSStYkR6dz09>

**Department 414**  
**Meeting ID: 161 123 0725**  
**Passcode: 040696**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

**PROHIBITION ON RECORDING:** **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

|                            |   |                            |
|----------------------------|---|----------------------------|
| COUNTY OF SAN FRANCISCO,   | ) | Case Number: FCS-25-357487 |
| Petitioner                 | ) | Hearing Date: May 14, 2026 |
| VS.                        | ) | Hearing Time: 9:00 AM      |
| SERGIO A HERNANDEZ FLORES, | ) | Department: 404            |
| Respondent                 | ) | Presiding: AI MORI         |

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Sergio Hernandez Flores (Father) and Judith Yessenia Miranda (Mother) have one minor child together, Reina (DOB 6/14/2022, age 3).
- 2) On 2/17/2026, the Court ordered that Mother shall have temporary sole legal and sole physical custody of Reina, with parenting time for Father beginning 2/19/2026 as follows: (1) Every Tuesday and Thursday at 3pm, Father shall pick up Reina at daycare and spend time with her locally until 5pm, when the parties will exchange the child at the daycare; and (2) Every Saturday from 10am to 4pm, with exchanges curbside at Mother’s home. The Court set a review hearing for 5/14/2026 at 9am in Department 404 and ordered the parties to file and serve update declarations at least 10 days before the 5/14/2026 hearing.
- 3) Neither party filed an update declaration.

B. Findings and Orders

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

1 violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
2 child is the United States.

3 2) The Court will maintain the current order for temporary sole legal and sole physical custody to  
4 Mother, with parenting time for Father as set forth in the Findings and Order After Hearing from  
5 the 2/17/2026 hearing, filed 2/18/2026.

6 3) If either party wishes to change the current custody or parenting time order, they may file a new  
7 request for order.

8 4) The Court will prepare the Findings and Order After Hearing.  
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

MARGARITA N PRIKHODKO,

Petitioner

VS.

ALEXANDER KAMIL,

Respondent

) Case Number: FMS-20-387303

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER CHANGE TEMPORARY EMERGENCY ORDER, CHILD CUSTODY,  
VISITATION (PARENTING TIME), ORDER SHORTENING TIME TRANSFER BENEFITS/  
MODIFICATION CUSDODY ORDERS

**TENTATIVE RULING**

**The parties are ordered to appear at 9am on 5/14/2026 in Department 404 in person or via Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above**

**A. Procedural History**

- 1) Petitioner Margarita Prikhodko (Mother) and Respondent Alexander Kamil (Father) have one minor child together, Thomas (DOB 2/14/2011, age 16). Pursuant to a Stipulation and Order filed 5/4/2020, the parties have shared joint legal and joint physical custody of Thomas on a week-on, week-off schedule. In the 5/4/2020 Stipulation and Order, the parties also agreed to open a joint brokerage account to cover Thomas's expenses and for each party to place \$500 per month into the account.
- 2) On 4/17/2026, Father filed an ex parte request for sole legal and sole physical custody of Thomas. He states that on 3/1/2026, Mother "unilaterally surrendered custody" of Thomas to him after

1 Thomas, who is “severely disable[d],” “completely non-verbal,” and “requires 24-hour  
2 supervision,” became aggressive, attacked Mother, and bit her, and Mother “completely lost  
3 control over him.” Father states he has been providing around-the-clock care for Thomas since  
4 3/1/2026. He states he needs a custody and parenting time order so that he can receive In Home  
5 Support Services (IHSS) benefits for Thomas because Mother remains the authorized  
6 representative on the IHSS case. Father also seeks an order preventing either party from  
7 withdrawing funds from the joint brokerage account that they opened for Thomas. The Court  
8 denied Father’s ex parte request pending a hearing on 5/14/2026 on shortened time.

- 9 3) On 5/5/2026, Mother filed a response in which she states she initially had full custody of Thomas;  
10 she states that for the first 11 years of Thomas’s life, her timeshare was 99% and that Father’s was  
11 1%. In 2020, after 3 years of “extreme violence” by Thomas against her, Mother filed a motion to  
12 have Thomas placed in a mental hospital as she believed he was a threat and danger to himself  
13 and others. The matter was settled out of court, with the parties agreeing to share 50/50 custody  
14 and to open a joint account for Thomas’s benefit, with each party putting \$500 per month into the  
15 account. She states that Thomas is now over 6’2” and wears XL men’s clothes and size 13 shoes.  
16 She states his behavior has worsened dramatically and that he bit a large chunk of flesh and  
17 muscle out of her left forearm, causing her permanent disfigurement and nerve damage. In  
18 addition, he regularly sexually assaults Mother and engages in self harm, smashing his head  
19 against walls until there are holes in the walls. Mother reiterates her request to have Thomas  
20 placed in a mental hospital. Mother also asks that the court permit her to withdraw assets from the  
21 joint account, which now has a balance of \$340,000. She states she has placed \$265,000 of this  
22 amount into the account, while Father has contributed \$75,000. She states she has spent well over  
23 the account balance over the years, caring for Thomas.

## 24 **B. Findings and Orders**

- 25 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child  
26 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in  
27 violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
28 child is the United States.

2) **The parties shall appear at 9am on 5/14/2026 in Department 404 in person or via Zoom video.**

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

JHANE KIEANNA BROOKS,

Petitioner

VS.

MARCUS BENJAMIN LANDRY,

Respondent

) Case Number: FMS-20-387309

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION (PARENTING TIME),  
AND MOTHER MAY TRAVEL WITH MINOR

**TENTATIVE RULING**

**The parties are ordered to appear at 9am on 5/14/2026 in Department 404 in person or via Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above**

**A. Procedural History**

- 1) Petitioner Jhane Kieanna Brooks (Mother) and Respondent Marcus Benjamin Landry (Father) have one minor child together, Karson (DOB 3/6/2018, age 8). On 3/16/2020, the Court awarded sole legal and sole physical custody to Father with parenting time for Mother on Saturdays from 10am to 6pm. Thereafter, Mother's parenting time was gradually increased but legal custody remained with Father. There are several notations in prior court orders regarding Mother's disruptive behavior in court. In an order filed 11/20/2024, the Court ordered Mother to complete at least 12 hours of anger management classes.
- 2) In a Findings and Order After Hearing filed 3/19/2025, the Court ordered a 2-2-5 parenting time schedule and ordered the parties to ensure the child is enrolled in therapy on or before 5/31/2025.



- 3) On 12/11/2025, Mother filed a request for a change in custody, parenting time, and for an order permitting her to travel more than 100 miles away from home during winter break.
- 4) Father filed three responsive declarations opposing Mother's requests, on 12/26/2026, 1/2/2026, and 4/27/2026.
- 5) The Court has reviewed the parties' declarations.

#### **B. Findings and Orders**

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) **The parties shall appear at 9am on 5/14/2026 in Department 404 in person or via Zoom video.**

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

DANIEL MARTINEZ RAMIREZ,

Petitioner

VS.

EVA MARTINEZ,

Respondent

) Case Number: FDI-17-788631

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION, AND CHILD  
SUPPORT

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

- 1) The parties in this matter are Petitioner Daniel Ramirez (Father) and Respondent Eva Martinez (Mother).
- 2) On for hearing is Mother's Request for Order filed 2/13/2026 seeking custody and visitation orders as well as a modification of the child support order filed 5/26/2021.
- 3) The parties attended Family Court Services mediation on 4/29/2026 and reached a full agreement regarding Mother's custody and visitation requests. A Child Custody and Visitation Stipulation and Order memorializing the parties' agreements was filed on 5/4/2026.
- 4) The only issue remaining from Mother's Request for Order filed 2/13/2026 is Mother's request to modify child support.
- 5) The Court notes that on 10/19/2018, the Department of Child Support Services (DCSS) filed a Notice Regarding Payment of Support, Substitution of Payee.
- 6) A DCSS representative has confirmed for the Court that DCSS is still providing services in this case.

1 7) Because DCSS is providing services in this case, this Court must defer to the child support  
2 department regarding Mother's request to modify child support. The hearing on this issue is hereby  
3 continued to **Monday, 6/1/2026 at 8:30 AM in Dept. 414.**

4 8) The Court will prepare the Findings and Order After Hearing.  
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

MIN YUAN ("JOANNE") LIN,

Petitioner

VS.

WING KWONG QUOCK,

Respondent

) Case Number: FDI-23-797584

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE BIFURCATED STATUS ONLY JUDGMENT AND FAMILY CODE 271  
SANCTIONS

**TENTATIVE RULING**

**The parties are ordered to appear by Zoom or in-person at 10 AM on 5/14/2026 to provide the following additional information to the Court:**

- 1) Mother shall be prepared to explain why she is seeking COBRA coverage instead of a health insurance plan through Covered California that is comparable to her current health plan and how long she believes she will be eligible for COBRA coverage.**
- 2) Mother shall also be prepared to substantively respond to Father's request that she not be covered under the protections of Family Code section 2337(c)(4) if the Court grants an early termination of marital status.**
- 3) Both parties shall be prepared to provide an estimate for monthly COBRA coverage premiums for Mother.**

**If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.**

**A. Procedural History**

- 1) The parties in this matter are Petitioner Min (Joanne) Lin (Mother) and Respondent Wing Quock (Father). The parties married on 9/19/2011. Mother states the parties' date of separation is TBD. Father states the parties' date of separation was 8/1/2020, for a marriage of 8 years and 11 months. The parties have two minor children, Hannah (DOB: 12/6/2012) and Sophia (DOB: 6/20/2015). Father is represented by attorney Arusyak Abrahamyan. Mother is represented by attorney Randy Rabidoux.
- 2) On 3/15/2023, a 3-Year Restraining Order After Hearing was entered to protect Mother and the parties' two children against Father.
- 3) On 3/10/2026, pursuant to a stipulated agreement of the parties, an Order to Renew Domestic Violence Restraining Order was filed, extending the expiration date of the restraining order to 3/15/2031.
- 4) Now on for hearing is Father's Request for Order filed 3/9/2026 asking the Court to bifurcate and terminate the parties' marital status and to award Father \$4,875.50 in Family Code section 271 attorney's fees sanctions. Father states the parties have been meeting and conferring through counsel regarding Father's request to terminate the parties' marital status. Father states he has offered to maintain health insurance coverage for the parties' daughters and to pay the monthly premiums for Mother to obtain health insurance coverage comparable to what she has through Father's employer. However, Mother has not agreed to his request to bifurcate and terminate marital status.
- 5) On 3/9/2026, Father's attorney Arusyak Abrahamyan filed a declaration. Ms. Abrahamyan states that on 10/31/2025, her office emailed Mother's attorney a proposed status-only judgment for his review. Ms. Abrahamyan states that although Mother's attorney stated he would propose edits to Father's proposed status-only judgment, no proposed edits to the judgment forms were provided. Ms. Abrahamyan also states that on 1/15/2026 her office provided Mother's attorney with the contact information for Father's employer's HR department (so that Mother could speak with the appropriate representative regarding COBRA coverage), but no further response has been received from Mother's attorney. Ms. Abrahamyan states Father has incurred attorney's fees for Ms. Abrahamyan to meet and confer with Mother's attorney, discuss the health insurance

1 concerns with Father, prepare this Request for Order and Father will incur additional fees for Ms.  
2 Abrahamyan to represent Father at the hearing. Ms. Abrahamyan estimates that Father will incur  
3 a total of \$4,875.50 in attorney's fees and costs for these tasks.

4 6) On 5/1/2026, Mother filed a Responsive Declaration. Mother asks the Court to order Father to be  
5 "responsible for payment of the cost of COBRA continuation of the existing PG&E health and  
6 medical insurance coverage for me and continued health insurance coverage for our children until  
7 entry of judgment on all reserved issues" and to enter the Judgment proposed by Mother. Mother  
8 states she understands that upon termination of the marriage, she will no longer be eligible for  
9 health insurance coverage through Father's employer, but she will be eligible to continue the  
10 existing coverage through COBRA continuation coverage. Mother states Father refused to pay  
11 the COBRA premium and insisted that she secure cheaper coverage through a subsidized public  
12 option. Then Father agreed to pay the COBRA premiums but only upon the condition that he later  
13 seek repayment of them "along with all of my health insurance costs since we separated in 2023."  
14 Mother states, "I will be no better able to reimburse Wing for the cost of my health insurance at  
15 the end of this proceeding than I am able to pay it now."

16 7) Attached to Mother's Responsive Declaration is a declaration by her attorney Randy Rabidoux.  
17 Mr. Rabidoux states that his office made multiple calls to Father's employer PG&E, its benefits  
18 provider, and the current insurance carrier to ascertain the cost of the COBRA premium, but each  
19 entity stated that securing that information requires Father's authorization and involvement. Mr.  
20 Rabidoux informed Father's attorney of this but, to date, Father has not provided this information.  
21 Mr. Rabidoux notes that the current child and spousal support order (Findings and Order After  
22 Hearing filed 6/14/2023) is based on a support calculation which takes into account a deduction  
23 of \$2,700 per month for Father's payment of health insurance. Mr. Rabidoux argues, "By  
24 conditioning his continued payment for Joanne's health insurance upon a right to seek  
25 reimbursement for all insurance payments since the parties separated, Wing seeks to transfer that  
26 entire cost to Joanne, along with any increase that is caused by his request for the early  
27 termination of the parties' marital status. Joanne, who supports her household from the support  
28 set on the basis of Wing paying her insurance, cannot afford this. Wing can and should be  
29 responsible for this expense, as the existing support order contemplates. Wing is attempting to use

1 his request to bifurcate the parties' marital status as a pretext to shift the costs of Joanne's health  
2 insurance to her – prospectively and retroactively -- despite his substantial \$13 million estate and  
3 her far more limited financial resources. It is this effort, along with Wing's initial insistence on  
4 subsidized insurance and his continued refusal to disclose the cost of COBRA coverage that is  
5 accessible only to him, that has prevented resolution of this matter by agreement." Mr. Rabidoux  
6 further notes that Father's proposed status-only Judgment "fail[s] to include the customary  
7 protections Family Code section 2337, subdivisions (c) and (d)." Finally, Mr. Rabidoux notes that  
8 Father has a Pacific Gas & Electric pension and IRA accounts that have not been joined as parties  
9 to this proceeding.

10 8) On 5/1/2026, Mother filed a Memorandum of Points and Authorities. Mother cites Family Code  
11 section 2337(c)(2) which provides that when granting an early termination of marital status, "The  
12 court may impose upon a party any of the following conditions... Until judgment has been  
13 entered on all remaining issues and has become final, the party shall maintain all existing health  
14 and medical insurance coverage for the other party and any minor children as named dependents,  
15 so long as the party is eligible to do so. If at any time during this period the party is not eligible to  
16 maintain that coverage, the party shall, at the party's sole expense, provide and maintain health  
17 and medical insurance coverage that is comparable to the existing health and medical insurance  
18 coverage to the extent it is available. To the extent that coverage is not available, the party shall  
19 be responsible to pay, and shall demonstrate to the court's satisfaction the ability to pay, for the  
20 health and medical care for the other party and the minor children, to the extent that care would  
21 have been covered by the existing insurance coverage but for the dissolution of marital status, and  
22 shall otherwise indemnify and hold the other party harmless from any adverse consequences  
23 resulting from the loss or reduction of the existing coverage. For purposes of this subdivision,  
24 'health and medical insurance coverage' includes any coverage for which the parties are eligible  
25 under any group or individual health or other medical plan, fund, policy, or program."

26 9) On 5/7/2026, Father filed a Reply Declaration. Father states he agrees to pay the COBRA  
27 premiums and that the "single, narrow issue I have requested is that my potential reimbursement  
28 claim be reserved for later determination by the Court, not that Petitioner agree to reimburse me,  
29 and not that she waive her right to oppose such a claim if and when it is actually litigated." Father

1 states, "Petitioner's refusal to execute any stipulation that includes this reservation is  
2 unreasonable and has directly caused the need for this hearing." Father states he acknowledges  
3 that the current support order is based on his paying \$2,700 per month for insurance premiums  
4 and this is "precisely why I have proposed Covered California coverage, which would likely have  
5 resulted in a premium at or near that figure, reducing or eliminating my reimbursement claim  
6 entirely. Petitioner rejected that proposal and insisted on COBRA, which I understand will be  
7 significantly higher than \$2,700 per month. My reimbursement claim is directed at that  
8 incremental difference, the amount above and beyond what is accounted for in the support order,  
9 incurred solely at Petitioner's insistence." Father states that Mother's attorney only reached out to  
10 PG&E HR after Father filed his Request for Order to obtain the COBRA cost information. Father  
11 states he has not had success obtaining that information either. Father further states that his  
12 PG&E pension was inadvertently omitted from the parties' stipulation dividing their retirement  
13 accounts and that Mother raised this issue for the first time in her 5/1/2026 Responsive  
14 Declaration. Father states he is willing to stipulate that the community property portion of the  
15 PG&E pension also be divided by QDRO according to the same terms as the parties previously  
16 agreed regarding the division of the IRA Accounts. Father further requests that the Court not  
17 grant a probate family allowance under Family Code section 2337(c)(4) because he is 70 years  
18 old, Mother is 49 years old, Mother filed the Petition for Dissolution, and granting this condition  
19 would incentivize Mother to delay resolution of the remaining issues in the case "as she would  
20 stand to benefit from my estate as if she were my surviving spouse if I pass before final judgment  
21 is entered."

22 10) The Court notes that, other than a hearing on 5/26/2026 on Mother's Request for Order filed  
23 4/14/2026 seeking Court authorization to renew the children's passports and travel with them  
24 internationally, there are no future hearings or conferences set in this matter.

## 25 **B. Findings and Order**

26 1) The Court finds that joinder of Father's PG&E pension plan is not necessary under Family Code  
27 section 2337(d)(1) because the pension may later be divided through a QDRO consistent with  
28 ERISA. The Court also finds that Family Code section 2337(d)(1) does not require that Individual  
29 Retirement Accounts (IRA) accounts be joined as parties to the proceeding.



1 2) Father's request for attorney's fees sanctions is denied.

2 3) **The parties are ordered to appear to provide the following additional information to the**  
3 **Court:**

4 a. **Mother shall be prepared to explain why she is seeking COBRA coverage instead of**  
5 **a health insurance plan through Covered California that is comparable to her**  
6 **current health plan and how long she believes she will be eligible for COBRA**  
7 **coverage.**

8 b. **Mother shall also be prepared to substantively respond to Father's request that she**  
9 **not be covered under the protections of Family Code section 2337(c)(4) if the Court**  
10 **grants an early termination of marital status.**

11 c. **Both parties shall be prepared to provide an estimate for monthly COBRA coverage**  
12 **premiums for Mother.**  
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

ABIGAIL ALCALA,

Petitioner

VS.

SALVADOR ALCALA,

Respondent

) Case Number: FDI-23-798607

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

PETITIONER'S REQUEST FOR THE COURT TO APPOINT EVIDENCE CODE SECTION 730  
EXPERTS TO TRACE FUNDS RESPONDENT MAY HAVE MISAPPROPRIATED, VALUE THE  
PARTIES' PROPERTIES, AND CONDUCT A BUSINESS VALUATION OF THE PARTIES' CATTLE  
RANCHING BUSINESS IN MEXICO FROM PETITIONER'S RFO FILED 9/16/25

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties in this matter are Petitioner Abigail Alcala (Wife) and Respondent Salvador Alcala (Husband). The parties married on 6/29/1967. The parties agree their date of separation is on 5/5/2023, for a marriage of 55 years and 11 months. The parties have no minor children in common. Wife is represented by attorney Jane Migachyov. Husband is represented by attorney Jeremy Castro (who substituted into this case on 3/9/2026).
- 2) At the prior 11/25/2025 hearing, the Court partially adjudicated Wife's unopposed Request for Order filed 9/16/2025. The Court:
  - a. Noted that Husband had been served by mail at the address Husband's former attorney listed for Husband (i.e., 226 Goldfinch Way Livermore, CA 94551) in the Amended Substitution of Attorney filed 6/3/2025.

- b. Adopted Wife's guideline temporary spousal support calculation and ordered Husband to pay \$4,650 per month in temporary spousal support effective 9/16/2025;
  - c. Ordered Husband to pay \$11,470 in temporary spousal support arrears for the period 9/16/2025 – 11/30/2025.
  - d. Awarded Wife \$111,162.80 in need-based attorney's fees and costs under Family Code section 2030 for fees incurred to date and for fees incurred through entry of Judgment and ordered Husband to pay this amount to Wife no later than 1/31/2026;
  - e. Ordered Husband to serve his full and complete Preliminary Declaration of Disclosure no later than 12/31/2025;
  - f. Ordered Husband to pay \$623.09 in attorney's fees sanctions under Family Code section 2107(c) and \$10,000 in attorney's fees sanctions under Family Code section 271, to be paid no later than 12/31/2025;
  - g. Reserved jurisdiction over Wife's request for the Court to award her 100% of various assets that Wife claims Husband misappropriated under Family Code section 1101(h);
  - h. Ordered Husband to transfer \$50,000 from community bank accounts to Wife no later than 12/31/2025;
  - i. Set a future hearing date of Tuesday, 1/27/2026 at 9:00 AM in Dept. 404 on Wife's request for the Court to appoint Evidence Code section 730 experts to trace funds Husband may have misappropriated, value the parties' properties, and conduct a business valuation of the parties' cattle ranching business in Mexico.
  - j. Ordered Wife to file and serve a declaration identifying which individuals she would like this Court to appoint as experts in this matter, their hourly rate, and their estimate for how much they believe they will incur to perform the requested tasks. Wife was also ordered to outline what qualifications and experience she believes renders the expert appropriate for appointment, and how she believes the cost of the experts should be allocated between the parties.
- 3) On 12/22/2025, Wife's attorney filed a declaration asking the Court to appoint the following individuals to perform the following tasks. Wife asks that the Court bear the cost of all three

1 experts' work because he has absconded with \$800,000+ of the community's funds and he can  
2 afford to pay for the fees.

3 a. Nick G. Tarlson, CPA to calculate the overall asset / debt division and equalization. Mr.  
4 Tarlson requires a \$5,000 retainer. No estimate is provided for the cost of the assignment  
5 "because of uncertainty concerning the complexity and availability of the data, potential  
6 developments in discovery and efforts toward settlement and trial preparation, all of  
7 which in his experience are highly volatile and case-specific."

8 b. Fernando Gomez-Martin of Valuadores Profesionales Altenos, SA de CV (VALRPOA)  
9 to appraise nine properties in Mexico. Mr. Gomez-Martin estimates that the appraisal for  
10 each property will cost "\$3,000 Mexican Pesos."

11 c. Martin Santos to appraise three properties in San Francisco. Wife states that Mr. Santos  
12 charges \$1,500 "for a court-appointed appraisal."

13 4) Per the Proof of Service filed 12/22/2025, Wife's attorney's declaration was mailed to Husband at  
14 226 Goldfinch Way Livermore, CA 94551 on 12/22/2025.

15 5) On 1/26/2026, the Court issued a Tentative Ruling to appoint Fernando Gomez-Martin and  
16 Martin Santos as Evidence Code section 730 experts to perform the tasks requested by Wife.  
17 However, the Court tentatively determined it would not be appropriate to appoint Nick Tarlson as  
18 an Evidence Code section 730 expert to calculate overall assets / debt division and equalization  
19 due to Wife's adversarial theory that Husband misappropriated community funds. The Court  
20 tentatively determined it "would not be appropriate for a joint neutral expert to conduct and  
21 review discovery to investigate that theory and opine on it," and that Wife could hire Mr. Tarlson  
22 has her personal expert.

23 6) At the 1/27/2026 hearing, Wife and her attorney appeared and Husband appeared in pro per.  
24 Husband stated he did not review the Tentative Ruling and was not ready to proceed. The Court  
25 agreed to continue the hearing to give Husband additional time to hire an attorney, continued the  
26 hearing to 3/26/2026 (which was later continued to 5/14/2026 by agreement of the parties), and  
27 ordered the parties to meet and confer in advance of the next hearing date.

28 7) On 5/7/2026, Wife's attorney filed an Update Declaration. In addition to reiterating her requests  
29 that the Court appoint Fernando Gomez-Martin and Martin Santos as Evidence Code section 730

1 experts, Wife requests that the Court re-consider appointing Nick Tarlson as an Evidence Code  
2 section 730 expert. Wife's attorney states: "Having Mr. Tarlson address the issues in this case,  
3 including misappropriation of funds is appropriate... because the determination that there is a  
4 breach of fiduciary duty is a legal one that only the attorneys can argue. The decision whether  
5 there was a breach of fiduciary duty rests firmly with the Court. The only role Mr. Tarlson would  
6 have is to objectively and neutrally evaluate records presented by both sides to trace relevant  
7 transactions and report back to counsel and the Court. He would not make the ultimate conclusion  
8 whether there was a breach of fiduciary duty." Wife's attorney states Mr. Tarlson estimated that  
9 forensic fees could be between \$20,000 - \$40,000 given the different facets of the case.

10 8) Wife's attorney states that meet and confer efforts with Husband's attorney ended in failure.  
11 Wife's attorney states, "He refused to state that his client would make ANY of the payments  
12 ordered in November 2025. I asked him about the disclosures and he said he was '75%' done. I  
13 have yet to see any disclosures a week later. On April 27, 2026 I presented to counsel the January  
14 2026 Citibank and First Federal Credit Union documents attached as exhibits here and asked for  
15 confirmation by the end of the week that his client would pay the balances to my client – he never  
16 did so. Having 730 experts would force counsel and their clients to promptly comply with  
17 document and information requests. But for Husband's stonewalling, this divorce would have  
18 ended long ago. My client is elderly and indigent. She simply wants to get what she is entitled to  
19 and move on with her life."

20 9) On 5/11/2026, Husband's attorney filed a Status Update. Husband's attorney states that Husband  
21 is working to restore Wife's health insurance coverage, is working on his financial disclosures,  
22 and is preparing a counter-settlement offer to Wife's settlement proposal. Husband's attorney also  
23 states that the current spousal support and attorney's fees orders were based on incorrect  
24 information and Husband is working to provide accurate and complete information to the Court.  
25 Husband states that "the order for payment expert fees was likewise made without proper  
26 consideration of Respondent's actual income and financial capacity and based in part on false  
27 information provided by Petitioner." On this point, the Court notes there has been no Court order  
28 appointing any expert in this matter or order requiring Husband to pay any expert fees. Husband  
29 asks the Court to: (a) continue any currently scheduled hearing to allow the parties adequate time

1 to complete disclosures and finalize settlement discussions; (b) stay the existing spousal support  
2 and attorney's fees order pending further proceedings "as Respondent's income has not been  
3 accurately represented in prior submissions and will be properly reflected in the forthcoming  
4 financial disclosures"; and (c) stay any outstanding fees/sanctions payment, to be addressed and  
5 resolved at the time of the settlement conference.

6 **B. Findings and Order**

- 7 1) The Court hereby appoints Fernando Gomez-Martin as the Court's Evidence Code section 730  
8 expert to appraise the parties' nine properties in Mexico. Within 10 days of any request by Mr.  
9 Gomez-Martin for documents, the parties shall provide such documents to Mr. Gomez-Martin.  
10 Effective immediately, all parties must be CC'd on all communications with Mr. Gomez-Martin.  
11 The Court authorizes Mr. Gomez-Martin to charge "\$3,000 Mexican Pesos" per property to be  
12 appraised. If Mr. Gomez-Martin requires additional fees beyond this amount, the parties may  
13 return to Court for this request.
- 14 2) The Court hereby appoints Martin Santos as the Court's Evidence code section 730 expert to  
15 appraise the parties' three properties in San Francisco. Within 10 days of any request by Mr.  
16 Santos for documents, the parties shall provide such documents to Mr. Santos. Effective  
17 immediately, all parties must be CC'd on all communications with Mr. Santos. The Court  
18 authorizes Mr. Santos to charge \$1,500 per property to be appraised. If Mr. Santos requires  
19 additional fees beyond this amount, the parties may return to Court for this request.
- 20 3) Husband shall pay any invoices presented by Mr. Gomez-Martin and Mr. Santos within 10 days  
21 of receipt of such invoices. The Court's jurisdiction to reallocate the cost of these experts is  
22 reserved for trial / final Judgment.
- 23 4) The Court finds that it is premature to appoint Nick Tarlson as an Evidence Code Section 730  
24 expert to calculate overall assets / debt division and equalization before Husband has served his  
25 Preliminary Declaration of Disclosure, and Wife's request to appoint Nick Tarlson as an expert in  
26 this matter is continued to **Thursday, 8/13/2026 at 9:00 AM in Dept. 404**. The Court previously  
27 ordered Husband to serve his Preliminary Declaration of Disclosure by 12/31/2025. Husband has  
28 yet to do so, although his attorney states that it is almost completed. Husband shall serve his  
29 Preliminary Declaration of Disclosure forthwith. After Husband serves his Preliminary

1 Declaration of Disclosure, the parties shall continue to meet and confer. If the parties are unable  
2 to reach an agreement, at least 20 calendar days prior to the next hearing date, oth parties shall  
3 file updated and fully completed Income and Expense Declarations. At least 10 calendar days  
4 prior to the next hearing date, both parties shall file and serve update declarations addressing the  
5 narrow issue of whether the Court should appoint Nick Tarlson as an Evidence Code Section 730  
6 expert to calculate overall assets / debt division and equalization and how Mr. Tarlson's fees  
7 should be paid.

- 8 5) The Court's jurisdiction to award attorney's fees sanctions due to Husband's failure to serve his  
9 Preliminary Declaration of Disclosure by statutorily and Court-provided deadlines is reserved.
- 10 6) Husband's requests made in his attorney's declaration filed 5/11/2026 to stay the enforcement of  
11 any orders requiring payment of spousal support, attorney's fees, and sanctions are denied  
12 without prejudice as these issues are not currently before the Court.
- 13 7) Wife's attorney shall prepare the Findings and Order After Hearing.
- 14 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within  
15 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other  
16 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule  
17 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
18 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
19 10 days may allow the other party to prepare a proposed order and submit it to the court in  
20 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

|                         |   |                            |
|-------------------------|---|----------------------------|
| HEATHER LYNN RODRIGUEZ, | ) | Case Number: FDI-24-800165 |
| Petitioner              | ) | Hearing Date: May 14, 2026 |
| VS.                     | ) | Hearing Time: 9:00 AM      |
| DANIEL RODRIGUEZ,       | ) | Department: 404            |
| Respondent              | ) | Presiding: AI MORI         |

REQUEST FOR ORDER COMPELLING FUTHER DISCOVERY RESPONSES

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Heather Rodriguez (Wife) and Respondent Daniel Rodriguez (Husband). The parties married on 6/25/2021 and separated on 8/21/2024, for a marriage of 3 years and 2 months. The parties have no minor children. Wife is self-represented. Husband is represented by attorney Jonathan Piper.
- 2) On 10/3/2025, in related Case No. FDV-25-818643, the Court issued a 5-Year Restraining Order After Hearing for Wife’s protection against Husband. The restraining order expires on 10/3/2030.
- 3) The Court notes that at a hearing on 10/23/2025 (per the Findings and Order After Hearing filed 11/12/2025), the Court adjudicated Wife’s request for spousal support filed 9/17/2025. Wife’s request was based on a Marital Settlement Agreement (MSA) the parties signed in September 2024. The MSA is attached to Wife’s 9/17/2025 Request for Order appears to be a global settlement agreement resolving all issues in the parties’ case. The MSA requires Husband to pay Wife \$2,500 in monthly spousal support from 10/1/2024 to 10/1/2026. Wife stated Husband paid spousal support to her of a period of one year and then suddenly stopped. Husband stated he only



1 signed the MSA to get Wife to agree to reconcile the relationship and because he felt pressure and  
2 duress to sign the MSA. Husband also stated that the agreement “went beyond the spousal  
3 support amounts called for under the law, both in amount and length.” Following the hearing,  
4 Judge Pro Tem Marjorie Slabach ordered Husband to pay Wife \$2,500 per month because “the  
5 MSA is a contract signed by both parties which is enforceable, unless or until it is set-aside or  
6 modified.”

7 4) Now on for hearing is Husband’s Request for Order filed 1/20/2026 asking the Court to compel  
8 Wife to provide proper responses to his previously served Form Interrogatories – Family Law,  
9 Set One. Husband also seeks sanctions in the amount of \$2,420 under Code of Civil Procedure  
10 section 2023.010. Husband states the Form Interrogatories were served by email on Wife on  
11 9/23/2025. Wife stated she did not consent to email service and so Wife was re-served with the  
12 Form Interrogatories on 11/3/2025. Wife served a response on 12/4/2025 which Husband states  
13 contained objections to every single interrogatory. On 12/10/2025, Husband’s attorney served a  
14 meet and confer letter. Wife asked what information was needed and offered to work informally  
15 to provide the requested information. Husband’s attorney informed Wife that the information  
16 requested is what is set forth in the Form Interrogatories. Wife replied, “[y]ou have not made a  
17 good faith meet and confer. As such, I maintain my objections.” Husband’s attorney states he is  
18 unable to effectively prepare for trial without Wife’s responses.

19 5) Husband attached to his Request for Order a copy of Wife’s Responses to Form Interrogatories.  
20 The Court notes the following responses by Wife below:

21 a. **Interrogatory 1:** Requests Wife’s full name and other names used, current residence and  
22 work address, and social security number. Wife objects because the request is irrelevant,  
23 oppressive, harassing, and unduly burdensome and because this information is protected  
24 by the DVRO.

25 b. **Interrogatory 2:** Requests information about and copies of any oral or written  
26 agreements related to assets, debts, or support made between the parties during marriage  
27 or after separation. Wife objects because the information is already in the possession of  
28 the propounding party and as such the interrogatory is irrelevant, oppressive, harassing,  
29 unduly burdensome, and not likely lead to the discovery of admissible evidence and

1 because “there is a marital settlement agreement that was upheld in court on October 23,  
2 2025.”

3 c. **Interrogatory 3:** Asks whether Wife is a party or anticipates being a party to any legal or  
4 administrative proceeding other than this action? Wife objects because the interrogatory  
5 is irrelevant, oppressive, harassing, unduly burdensome, and not likely to lead to the  
6 discovery of admissible evidence and because this information is protected by the  
7 DVRO.

8 d. **Interrogatory 4:** Asks Wife to state the name, age, and relationship of any persons  
9 sharing a residence with Wife. Wife objects because the interrogatory is irrelevant,  
10 oppressive, harassing, and unduly burdensome and not likely to lead to the discovery of  
11 admissible evidence, because there is an MSA “that was upheld in court on October 23,  
12 2025,” and because this information is protected by the DVRO.

13 e. **Interrogatory 5:** Asks Wife to state the name, age, address, and relationship of each  
14 person for whom Wife has provided support during the past 12 months and the amount  
15 provided per month. Wife objects because the interrogatory is irrelevant, oppressive,  
16 harassing, and unduly burdensome and because this information is protected by the  
17 DVRO.

18 f. **Interrogatory 6:** Asks Wife to state the name, age, address, and relationship to Wife of  
19 each person for whom Wife has received support during the past 12 months and the  
20 amount received per month. Wife objects because the interrogatory is irrelevant,  
21 oppressive, harassing, and unduly burdensome and not likely to lead to the discovery of  
22 admissible evidence, because there is an MSA “that was upheld in court on October 23,  
23 2025,” and because this information is protected by the DVRO.

24 g. **Interrogatory 7:** Asks Wife to list all income she received during the past 12 months, its  
25 source, the basis for its computation, the total amount, and Wife’s last three paycheck  
26 stubs. Wife objects because the interrogatory is irrelevant, oppressive, harassing, and  
27 unduly burdensome and not likely to lead to the discovery of admissible evidence,  
28 because there is an MSA “that was upheld in court on October 23, 2025,” and because  
29 this information is protected by the DVRO.

- 1 h. **Interrogatory 8:** Asks Wife to state whether she has received cash or other property  
2 from any source not identified in Item 7. Wife objects because the interrogatory is  
3 irrelevant, oppressive, harassing, and unduly burdensome and not likely to lead to the  
4 discovery of admissible evidence, because there is an MSA “that was upheld in court on  
5 October 23, 2025.”
- 6 i. **Interrogatory 9:** Asks Wife to attach copies of all tax returns and tax schedules filed by  
7 Wife or for Wife in any jurisdiction for the past three calendar years. Wife objects  
8 because this information is already in Husband’s possession because tax returns filed  
9 2021 – 2024 were filed jointly by Husband.
- 10 j. **Interrogatory 10:** Asks Wife to complete a Schedule of Assets and Debts. Wife objects  
11 because she states she already served her Schedule of Assets and Debts on 8/11/2025.
- 12 k. **Interrogatory 11:** Asks Wife to state facts that support her contention that an asset or  
13 debt is separate property. Wife objects because this information is already in Husband’s  
14 possession and because the interrogatory is irrelevant, oppressive, harassing, and unduly  
15 burdensome and not likely to lead to the discovery of admissible evidence, because there  
16 is an MSA “that was upheld in court on October 23, 2025.”
- 17 l. **Interrogatory 12:** Asks Wife whether she has received written offers to purchase or had  
18 written appraisals of any assets listed in her Schedule of Assets and Debts during the past  
19 12 months. Wife objects because this information is already in Husband’s possession and  
20 because the interrogatory is irrelevant, oppressive, harassing, and unduly burdensome and  
21 not likely to lead to the discovery of admissible evidence, because there is an MSA “that  
22 was upheld in court on October 23, 2025.”
- 23 m. **Interrogatory 13:** Asks Wife whether there is any property held by any third party in  
24 which she has an interest or over which she has control. Wife objects because this  
25 information is already in Husband’s possession and because the interrogatory is  
26 irrelevant, oppressive, harassing, and unduly burdensome and not likely to lead to the  
27 discovery of admissible evidence, because there is an MSA “that was upheld in court on  
28 October 23, 2025.”  
29

- 1 n. **Interrogatory 14:** Asks Wife whether she has an interest in any disability, retirement,  
2 profit-sharing, or deferred compensation plan. Wife objects because this information is  
3 already in Husband's possession and because the interrogatory is irrelevant, oppressive,  
4 harassing, and unduly burdensome and not likely to lead to the discovery of admissible  
5 evidence, because there is an MSA "that was upheld in court on October 23, 2025."
- 6 o. **Interrogatory 15:** Asks Wife whether she claims the legal right to be reimbursed for any  
7 expenditures of separate and community property. Wife objects because this information  
8 is already in Husband's possession and because the interrogatory is irrelevant,  
9 oppressive, harassing, and unduly burdensome and not likely to lead to the discovery of  
10 admissible evidence, because there is an MSA "that was upheld in court on October 23,  
11 2025."
- 12 p. **Interrogatory 16:** Asks Wife if she has claimed reimbursement credits for payments of  
13 community debts since date of separation. Wife objects because this information is  
14 already in Husband's possession and because the interrogatory is irrelevant, oppressive,  
15 harassing, and unduly burdensome and not likely to lead to the discovery of admissible  
16 evidence, because there is an MSA "that was upheld in court on October 23, 2025."
- 17 q. **Interrogatory 17:** Asks Wife to identify each health, life, automobile, and disability  
18 insurance policy or plan that she now owns or covers Wife or her assets. Wife objects  
19 because this information is already in Husband's possession and because the  
20 interrogatory is irrelevant, oppressive, harassing, and unduly burdensome and not likely  
21 to lead to the discovery of admissible evidence, because there is an MSA "that was  
22 upheld in court on October 23, 2025."
- 23 r. **Interrogatory 18:** Asks Wife to identify if there are any physical or emotional conditions  
24 that limit her ability to work. Wife objects because this information is already in  
25 Husband's possession and because the interrogatory is irrelevant, oppressive, harassing,  
26 and unduly burdensome and not likely to lead to the discovery of admissible evidence,  
27 because there is an MSA "that was upheld in court on October 23, 2025."
- 28 s. **Interrogatory 21:** Asks Wife to list any gifts she made without the consent of Husband  
29 in the past 24 months. Wife objects because the interrogatory is irrelevant, oppressive,

1 harassing, and unduly burdensome and not likely to lead to the discovery of admissible  
2 evidence, because there is an MSA “that was upheld in court on October 23, 2025.”

3 6) The prior 3/20/2026 hearing was continued to 5/14/2026 because the parties did not stipulate to  
4 Commissioner Rahim making orders at the 3/20/2026 hearing.

5 7) On 4/22/2026, Husband filed a Notice of Stay of Proceedings. Husband attached a Notice of  
6 Chapter 7 Bankruptcy Case filed 3/10/2026.

7 8) Wife has filed no pleadings responding to Husband’s Request for Order filed 1/20/2026.

8 **B. Findings and Order**

9 1) 11 United States Code section 362(b)(2)(A)(iv) (which applies to Chapter 7 bankruptcy cases)  
10 provides: “(b)The filing of a petition under section 301, 302, or 303 of this title, or of an  
11 application under section 5(a)(3) of the Securities Investor Protection Act of 1970, does not  
12 operate as a stay —...(2) under subsection ((A) of the commencement or continuation of a civil  
13 action or proceeding (iv) for the dissolution of a marriage, except to the extent that such  
14 proceeding seeks to determine the division of property that is property of the estate....”

15 2) The Court finds Husband’s motion to compel further responses to Form Interrogatories – Family  
16 Law, Set One does not constitute a proceeding seeking “to determine the division of property that  
17 is property of the estate” within the meaning of 11 United States Code section 362(b)(2)(A)(iv).  
18 Accordingly, the Court finds the bankruptcy stay does not preclude this Court from ruling on  
19 Husband’s motion to compel.

20 3) Husband failed to file a Separate Statement with his motion to compel as required by California  
21 Rules of Court, rule 3.1345(c). The Court could deny the motion on that basis alone, but the  
22 Court will instead make an order on the merits of the motion. The Court finds Husband has not  
23 established good cause for further responses at this time given that the parties have already  
24 entered into a global settlement agreement and there are currently no financial or property-related  
25 requests pending before this Court. The motion to compel further responses is denied.

26 4) The Court will prepare the Findings and Order After Hearing.  
27  
28  
29

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

HUEY FONTENOT,

Petitioner

VS.

LEIA DIANNE HARBOUR-FONTENOT,

Respondent

) Case Number: FDI-25-801885

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER RE SPOUSAL OR PARTNER SUPPORT, PROPERTY CONTROL

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties in this matter are Petitioner Huey Fontenot (Husband) and Respondent Leia Dianne Harbour-Fotenot (Wife). Husband contends the parties married on 4/14/2021 and separated on 11/1/2024, for a marriage of 3 years and 2 months. The parties have no minor children in common. Husband is self-represented.
- 2) On for hearing is Husband's Request for Order filed 12/18/2025. Husband asks the Court to (a) award him temporary guideline spousal support and (b) order Wife to pay rent for August – December in the amount of \$11,875.
- 3) Wife has filed no pleadings in this matter to date.
- 4) Per the Findings and Order After Hearing filed 4/1/2026, the Court continued the prior 3/12/2026 hearing on Husband's 12/18/2025 Request for Order to 5/14/2026 because there was no Proof of Service on file indicating service of the Dissolution Petition and Summons. The Court ordered Husband to file, in advance of the 5/14/2026 hearing date, a Proof of Service indicating that the

Petition, Summons, Tentative Ruling Instructions, and Findings and Order After Hearing for the 3/12/2026 hearing date were served on Wife.

5) There have been no additional pleadings filed by either party since the 3/12/2026 hearing date.

**B. Findings and Order**

1) Husband's Request for Order filed 12/18/2025 is denied without prejudice.

2) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

ADAM RANNELS,

Petitioner

VS.

GLORIA CARRILLO-RANNELS,

Respondent

) Case Number: FDI-26-802571

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR JUDGEMENT OF NULLITY OF MARRIAGE

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) On 2/10/2026, Petitioner Adam Rannels filed a Petition for Nullity against Respondent Gloria Carrillo-Rannels. Petitioner states the parties married on 3/5/2023 and separated 10 months later on 3/1/2024. Petitioner states the parties have no minor children in common. Petitioner requests that the Court terminate the Court's jurisdiction to award spousal support to either party and to confirm that there is no separate property or community property to be divided.
- 2) Per the Proof of Service of Summons filed 2/10/2026, the Petition for Nullity was personally served on Respondent on 2/10/2026.
- 3) Respondent has not filed a Response to the Petition for Nullity but has filed other pleadings in this matter.
- 4) On 3/17/2026, both parties filed Declarations Regarding Service of their Preliminary Declarations of Disclosure.
- 5) Now on for hearing is Petitioner's Request for Order filed 3/24/2026 asking the Court to annul the parties' marriage on the basis of his physical incapacity.



6) Respondent filed a Responsive Declaration on 4/30/2026 stating that she “consent[s] to the order requested” and “consent[s] to the facts and supplemental facts that have been submitted to support our case.”

**B. Findings and Order**

1) The Court finds good cause to grant Petitioner’s request for an annulment on the basis of physical incapacity under Family Code section 2210(f).

2) The parties may submit a proposed Judgment through the Court’s normal Judgment submission procedures. If the parties have questions regarding how to do this, they may contact the ACCESS Center. Information for contacting the ACCESS Center can be found here:

<https://sf.courts.ca.gov/access-legal-self-help-center>.

3) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

STEVE DUKES,

Petitioner

VS.

ALONA ABALAYAN DUKES,

Respondent

) Case Number: FDV-22-816219

) Hearing Date: May 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TEMPORARY EMERGENCY ORDER, CHILD CUSTODY, VISITATION  
(PARENTING TIME), ORDER SHROTENING TIME

**TENTATIVE RULING**

**The parties are ordered to appear at 9am on 5/14/2026 in Department 404 in person or via Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above**

**A. Procedural History**

- 1) Petitioner Steve Dukes (Father) and Respondent Alona Abalayan Dukes (Mother) have one minor child together, Steven (9/1/19, age 5).
- 2) On 4/17/2026, Father filed an ex parte request for temporary sole legal and physical custody with no parenting time for Mother. He asserted that when he picked up Steven from Mother, he had multiple abrasions on his face that he said was the result of Mother "hit[ting] [him] in the face." Father took Steven to the doctor, who prescribed medication, then reported the incident to the school psychologist, who called Child Protective Services (CPS). The Court granted the ex parte request and granted temporary sole physical custody of Steven to Father, set a hearing for

5/14/2026 on shortened time, and suspended visits for Mother pending the hearing. The Court ordered Mother to file a responsive declaration on or before 5/1/2026.

- 3) On 4/28/2026, Mother filed a response stating that Father's allegations are false and is part of an ongoing pattern intended to damage her relationship with their child. Mother states that when Steven left home on 4/5/2026 to see Father, he was clean, happy, and well-dressed; he had no abrasions on his face, except redness from an insect bite. She states that the wound shown in the photograph that Father submitted to the Court is a pre-existing wound from 3/1/2026, when Steven suffered injuries while in Father's care. Mother notes that Father has made multiple prior allegations of abuse against her, all of which have been determined by CPS to be "unfounded." She attaches excerpts from CPS reports indicating that Father has previously made similar claims and that CPS found those allegations to be "false, inherently improbable, to involve an accidental injury, or not to constitute child abuse or neglect."

#### **B. Findings and Orders**

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) **The parties are ordered to appear at 9am on 5/14/2026 in Department 404 in person or via Zoom video.**